

As for sanctions under Code of Civil Procedure section 128.5, the court should deny Plaintiffs' request. Section 128.5 allows a court to order a party or counsel, or both to pay the reasonable expenses, including attorney's fees, incurred by the other party as a result of bad-faith actions or tactics that are frivolous or solely intended to cause unnecessary delay. Section 128.5(a) requires either: (1) bad faith actions or tactics or (2) a frivolous action. Actions or tactics includes "the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer or other responsive pleading." (*Id.* at § 128.5(b)(1).) Frivolous is "totally and completely without merit or for the sole purpose of harassing an opposing party." (*Id.* at § 128.5(b)(2).) The standard is based on a subjective bad faith determination rather than objective. (*In re Marriage of Sahafzadeh-Taeb & Taeb* (2019) 39 Cal.App.5th 124, 134.)

Despite the denial of the motion, the court shall not impose sanctions as Defendant's motion has merit regarding the ability of Plaintiff in obtaining a default judgment. Under the current situation, Plaintiffs will not receive a default judgment. The complaint lacks any notice about the amount of damages, and therefore, any default judgment would violate due process. (*Marriage of Lippel* (1990) 51 Cal.3d 1160, 1166.) Nor would a statement of damages cure any defect, because it applies to personal injury and wrongful death actions, and must be served before entry of default. (Code Civ. Pro. §425.11.) This is not a personal injury or wrongful death action, and thus a statement of damages does not cure a defect. (*Dhawan v. Biring* (2015) 24 Cal.App.4th 963, 968.)

Motion to Quash Service of Summons DENIED.

Request for Sanctions DENIED.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO SET ASIDE DEFAULT ON COMPLAINT OF SYDNEY GUBIN BY DENNIS N. WALSH

Tentative Ruling: No tentative ruling, a hearing shall be conducted.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2506601	TAPIA MORALES VS KIRKPATRICK	MOTION FOR AMENDING THE FILING DATE OF COMPLAINT NUNC PRO TUNC BY REYNA AIDEE TAPIA MORALES, YOVANI AGUILAR TAPIA

Tentative Ruling: Code of Civil Procedure section 473(d) permits the court, upon motion, to correct clerical mistakes in its judgments or orders. A clerical error is an inadvertent error in entering or recording the judgment rather than in rendering the judgment, i.e. judicial error. (*Bell v. Farmers Ins. Exch.* (2006) 135 Cal.App.4th 1138, 1144.) While section 473(d) speaks in terms of judgments and orders, California courts have consistently applied nunc pro tunc principles to deem complaints filed when clerks improperly reject them. (*Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774, 778; *Carlson v. State of California Department of Fish & Game* (1998) 68 Cal.App.4th 1268, 1282-1283.) The remedy is not limited to post-judgment corrections.

The clerk's functions are ministerial and the clerk has no discretion to reject a complaint that substantially complies; the remedy is to issue a nunc pro tunc that deems the complaint filed when it was presented. (*Rojas*, supra, 67 Cal.App.4th at 777-778.) In *Rojas*, the court of appeal reversed a summary judgment where the clerk rejected a complaint because a declaration for court assignment lacked a signature and the summons contained the address of the wrong court division. (*Id.* at 775.) The court held: "It is difficult enough to practice law without having the clerk's office as an adversary. Where, as here, the defect, if any, is insubstantial, the clerk should file the complaint and notify the attorney or party that the perceived defect should be corrected at the earliest opportunity." (*Id.* at p. 777.)

Similarly, in *Carlson v. State of California Department of Fish & Game* (1998) 68 Cal.App.4th 1268, 1271-1272, the plaintiff's counsel had failed to include a "certificate of assignment" required under local rule and the court clerk rejected it; by the time counsel was able to return to court, the statute of limitations had passed. "Government Code section 69846.5 provides that '[t]he clerk of the superior court shall endorse on each paper filed with the court the day, month, and year it is filed.' For purposes of the statute of limitations, 'filing' means delivery to the clerk during business hours." (*Id.* at 1273.) "[S]tate law is clear that a paper is deemed filed when it is presented to the clerk for filing in a form that complies with [former] CRC 201. If a paper is thus presented, the clerk has a ministerial duty to file it." As to local rules, they cannot conflict with state law. (*Id.* at 1279.) While there are some consequences for failure to comply with a local rule, it does not authorize a clerk to refuse to file a pleading that complies with the California Rules of Court. (*Id.* at 1279-1280.)

As explained by one court: "If a document is presented to the clerk's office for filing in a form that complies with the rules of court, the clerk's office has a ministerial duty to file it. [Citation.] Even if the document contains defects, the clerk's office should file it and notify the party that the defect should be corrected." (*Voit v. Superior Court* (2011) 201 Cal.App.4th 1285, 1287.)

Here, Plaintiff provides proof that she submitted the complaint on August 13, 2025 with a confirmation number. (Lowrey Decl., Ex. 2.) While Plaintiff did file a long-form complaint on September 4 rather than resubmitting the August 13 version, this was done "out of an abundance of caution" in response to the clerk's vague rejection notice. (Lowrey Decl. ¶ 6.) The September 4 filing asserted the same causes of action—motor vehicle negligence, general negligence, and negligence per se arising from the same September 3, 2023 accident. Where a clerk improperly rejects a compliant filing, the party should not be penalized for attempting to cure perceived defects, particularly when the nature of those defects was unclear by the court clerk. The court clerk's vague rejection "Parties must be named on petition to ascertain the information is in fact correct" does not provide a violation of the rule of court. But as explained above, even if there was a violation, the clerk's office has a ministerial duty to file it and then notify Plaintiff of the defect.

Defendant's argument is that Plaintiff assumed the risk by waiting until shortly before the deadline. But, Plaintiff filed well before the deadline—21 days in advance—and took appropriate steps to follow up on the filing status. (Lowrey Decl. ¶¶ 2, 4.)

Defendant's contention as to the electronic filing service provider is unavailing under Rule 2.259. The issue is not whether the court's electronic filing system was in error or whether a OneLegal.com made an error, but whether the court clerk properly rejected the filing. The record contains no evidence that OneLegal.com failed to transmit the

documents or that Plaintiff's counsel failed to provide proper documents to OneLegal.com.

"Unless otherwise provided, a document is deemed filed on the date it is received by the court clerk." (Cal. R. Ct., rule 1.20.)

Motion for Nunc Pro Tunc Order Pursuant to C.C.P. § 473(d) GRANTED.

The Complaint is deemed filed August 13, 2025.

OSC re Proof of Service is continued to 9.15.26.

Case Management Conference is continued to 9.15.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509899	COUNTY OF RIVERSIDE VS MONROE SHOPS, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY	DEMURRER TO ANSWER ON COMPLAINT FOR EMINENT DOMAIN/INVERSE CONDEMNATION (OVER \$35,000) OF COUNTY OF RIVERSIDE

Tentative Ruling: A demurrer to an answer tests whether it states facts sufficient to constitute a defense. (Code Civ. Proc., § 430.20(a).) In an eminent domain action, an answer objecting to the plaintiff's right to take **shall** state the "specific facts upon which the objection is based." (Code Civ. Proc., § 1250.350, emphasis added.)

Defendants filed an Answer on 4/24/26. There, affirmative defenses nos. 1, 2, 3, 4, 8, 9, 10 challenge the public necessity findings that the Resolution of Necessity established. (Code Civ. Proc., § 1245.250(a).) In *City of Lincoln v. Barringer* (2002) 102 Cal.App.4th 1211, the court held that a property owner who objects to a taking must exhaust his or her remedies by appearing and objecting at the public hearing on the resolution. Here, the Resolution of Necessity on file shows that Defendants did *not* appear or object. Defendants did not rebut their non-appearance. Instead, they argue that the hearing notice given was defective since it provided 10 days instead of the required 15 days. (CCP § 1245.235(b)(3).) County counters that there is no mandatory 15-day service requirement under CCP §1245.235(d). Section 1245.235(d) states:

Notwithstanding subdivision (b), the governing body may satisfy the requirements of this section through any other procedure that has given each person described in subdivision (a) **reasonable** written personal notice and a **reasonable** opportunity to appear and be heard.

Accordingly, County argues that property owners are *not* guaranteed a minimum of 15 days after notice is mailed to file objections. It also argues that reasonable notice was provided. Here, the record reflects that the County complied with CCP § 1245.235 by mailing notice by first class mail to Monroe Shops, LLC at the address it provided for the tax assessor roll as shown in the 7/31/25 grant deed. This creates a presumption of receipt. (Evid. Code, §§ 641, 664.) Defendants claimed only insufficient time of notice, but do not contest the actual receipt of the notice. Accordingly, Defendants' argument